

5BEFORE THE

FEDERAL MARITIME COMMISSION

DOCKET NO. 25-24

Southern International Co., LTD

Complainant,

v.

Daynamez Group of Companies LLC

Respondent.

Response to Motion to Compel Discovery

Comes Now the Respondent, Daynamez Group of Companies LLC (hereinafter Daynamez) and responds to the Motion as follows:

1. The Complainant is sending out massive amounts of discovery.
2. The Discovery is even more massive than what was sent out previously.
3. This seems like a blatant attempt to force a small company out of business.
4. There are 48 new Requests for Production which are actually multiple requests in themselves within most of them. See below.

REQUEST FOR PRODUCTION NO. 36

Produce Documents sufficient to identify the full legal name and principal business address of the entity Daynamez identified as “Pacific Logistics and Trading,” and to show the nature and scope of Daynamez’s relationship with that entity concerning the Shipments at Issue. Also produce existing agreements or engagement records, invoices, payment instructions, remittance records, bank-generated confirmations, and accounting entries supporting each payment

Daynamez contends it made to that entity in connection with the Shipments at Issue.

There are multiple requests within this Request.

5. The new Requests for Admission number 110. This is abusive and unduly burdensome.
6. There are 48 interrogatories which for the most part are making multiple requests. An example of one of these is the following:

INTERROGATORY NO. 25

State all material facts supporting Daynamez's contention that it was not required to hold an ocean transportation intermediary license or furnish proof of financial responsibility under 46 U.S.C. §§ 40901 and 40902 and the applicable FMC regulations for the services it performed concerning the Shipments at Issue. Identify each statutory or regulatory exception on which Daynamez relies and, if Daynamez relies on a disclosed-agent theory, identify the principal for whom it acted and state how that agency relationship was disclosed to SIC.

On top of everything else, this is asking for a legal conclusion. along with the first set of interrogatories, this exceeds 50 on this set alone.

7. Responding repeatedly to this Discovery had already created a hardship on the Respondent.
8. The cumulative balance on this case is by the Complainant's own admission that it owes my client \$149,990 which is being claimed as a setoff. Docket Entry 24 Exhibit C. How could these allegations be true when the Complainant owes money to the Respondent? Although this proceeding did not allow a counterclaim, it is still proof that the Complaint is baseless. How

could the Respondent have cost the Complainant a few million dollars when it acknowledging a net amount owed to the Respondent. See Exhibit C to the Counterclaim on docket entry 24.

9. This discovery which is supplemental is more massive than the original paper discovery.
10. The proceedings in front of the Federal Maritime Commission should not be used to strong arm a party into submission based on excessive paperwork.
11. In *Ree v. Royal Caribbean Cruises Ltd.*, 315 F.R.D. 682 (S.D. Fla. 2016), a Florida federal court applying the analogous FRCP standard stated, “And so we find that discovery requests like these that are not adequately linked to a particular hazard, location or condition are not enforceable. *See also Joseph v. Carnival Corp.*, 2011 WL 3022555, at *3 (S.D.Fla. July 22, 2011) (no duty to warn where passenger did not allege that cruise line “knew or had reason to known of any incidents associated with the latent dangers of parasailing involving the specific vendor engaged”) (citing *Carlisle*, 475 So.2d at 251 (common carrier's duty to warn is “limited to dangers known to exist in the particular place where the passenger is invited to, or reasonably may be expected to visit.”))

In the case in this proceeding, the Complaint is seeking details on 525 shipments.

12. Interrogatories “requesting ‘every fact’ in support of a party's legal contentions are generally considered to be overly broad and unduly burdensome.” *Odyssea Stevedoring of Puerto Rico, Inc. v. Puerto Rico Ports Auth.*, Docket No. 02-08, 29 S.R.R. 1392, 1394 (ALJ Dec. 12, 2002) *FMC Ocean Network Express Pte. Ltd. and see also Ocean Network Express (north America) Inc. - Possible Violations of 46 U.S.C. S 41102(c)*, 2022 WL 1485900.

13. There needs to be some protection from this harassment. If the Complainant wants to ask so many questions, then it should take a deposition.

14. There should be a determination on the necessity for all of this discovery by seeing if there is even any outstanding money owed.

Wherefor the Respondent would ask that the Motion be denied.

Dated: August 25th, 2026,

CERTIFICATE OF SERVICE

I certify that on the 25th day of August 2026 a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:

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Dated:

February 26, 2026

Respectfully submitted,
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s/Daniel W. Raab

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